جامعة خليفة
Khalifa University

REVENUE CONTRACT (RC)

1. REVENUE CONTRACT DETAILS	
Contract No.	KU/ 345/SRM/2022
Contract Title:	Scientific Supplies -Building M- Main Campus

2. SCHEDULE		**3. CONTRACTOR/SUPPLIER DETAILS**	
Start Date:	5/12/2022	Contractor:	M/s SKYLINE GENERAL TRADING CO.LLC
End Date:	This Contract will be automatically renewed on yearly basis unless either party provides an advance notice of one (1) month for termination of contract.	Address:	ABU DHABI
Location:	Main Campus Building M	Email:	SSS_EST@YAHOO.COM

4. BRIEF SCOPE

4.1 As detailed in section no. 19 of the Contract.

5. TERMS AND CONDITIONS

5.1 The Terms & Conditions of this RC will apply as printed over leaf.
5.2 This Contract will be automatically renewed on yearly basis unless either party provides an advance notice of one (1) month for termination of contract.

6. APPENDICES

6.1 Appendix - A : price List as per attached Contract
6.2 Appendix - B : Outlet Floor Plan

7. SCHEDULE OF FEES

Revenue Share % to be paid by Contractor	:	The second party shall provide a revenue share of 22% of total sales against rent to the first party
Fee Payment frequency	:	Monthly

8. CONTACT PERSONNEL

Khalifa University of Science and Technology (FIRST PARTY)		**SKYLINE (SECOND PARTY)**	
Name:	Abdulrahman Al Marzooqi	Name:	Mohamed Soliman
Title:	Hospitality Supervisor	Title:	MANAGING PARTNER
Tel/e-mail:	+971 2 312 4363 / abdulrahman.almarzooqi@ku.ac.ae	Tel/e-mail:	0506228241 / sss_est@yahoo.com

9. PAYMENT TERMS

9.1 Payment of the revenue share as specified in section 7 above will be made as per the terms and conditions of this contract.
9.2 The Contract will not be renewed unless the Contractor pays all their revenue share dues to KU as per the terms and conditions of this Contract. **Note: The menu pricing mentioned should always be maintained by the Vendor and cannot be changed. In case the Vendor needs to update the pricing due to unforeseen reasons or any reasons whatsoever, the Vendor is mandated to get a prior approval from KU for such actions. Any pricing or menu updates without the approval from KU will result in breach of contract terms and conditions and thereby, liquid Damages and performance bank guarantee application will be issued against the Vendor.(NOT APPLICABLE FOR SECOND PARTY)*

10. DOCUMENT REVIEWED BY

Reviewed by:	Mohammed Alqassim	Reviewed by:	Saeed Al Mahri

11. SIGNED BY

Khalifa University of Science and Technology (FIRST PARTY)		**SKYLINE (SECOND PARTY)**	
Name:	Saeed Ahmed Al Mahri	Name:	MOHAMED SOLIMAN
Title:	A/ VP for Procurement and contracts	Title:	MANAGING PARTNER
Signature:		Signature:	
Date:	27/10/22	Date:	**25/10/2022**

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Khalifa University
Procurement & Contracts Dept.

Khalifa University, P.O.Box 127788, Abu Dhabi, United Arab Emirates, Tel: (02) 4018000 www.ku.ac.ae

TERMS AND CONDITIONS FOR THIS REVENUE CONTRACT

12. SUMMARY

The First Party who is the owner and operator of an educational institution having its campus located in Abu Dhabi is desirous of having a CONTRACT for the subject services in Khalifa University Main Campus by the above named Second Party in the designated location of the First Party's premises set out in Appendix B (Outlet Floor Plan).

a. First Party requires the Services set out in Clause 19 (Scope of Work) hereunder to be executed.

b. Second Party declared that it has the manpower, finance, resources, and know-how necessary to perform the Services set out in Clause 19 (Scope of Work) hereto and wishes to carry out the same according to the terms and conditions hereof, for the prices set forth in Clause 17 (Pricing / Rent) and Appendix A (Menu / Price List) attached hereto.

13. INTRODUCTION

The preface above as well as supplements attached to this Contract, Second Party's proposal, any other supplements or tables the Parties agreed on, general and special conditions, the respective technical specifications, declarations and undertakings submitted by the Second Party and accepted by the First Party, together with the documents attached hereto shall all constitute an integral part of this Contract.

14. ENTIRE CONTRACT

1. This Contract constitutes the entire agreement between the two Parties and shall include all the agreed terms and conditions.

2. Neither Party shall be bound or responsible of any statement, declaration, promise, solicitation or any understanding, of any kind of nature, except for the provisions of this Contract.

3. No alterations, amendments, or changes to the terms and conditions hereof shall be valid, unless affected by a "Variation Order" signed by the two parties as per Clause 28 (Variations) hereto.

15. CONTRACTOR INDEPENDENCE

1. During the Contractor performance of this Contract, it has to act as an independent Contractor and not as an agent for University. It shall have no right to present any declaration, promise or commitment of any kind on behalf of University, nor shall it bind University towards third parties by any mean.

16. MAIN POINT OF CONTACT

1. The main contact person – for the Contractor – within the University will be the Director of Facility Management Department to whom the Contractor is directly responsible.

2. The Director of Facility Management Department may designate other persons within this department to be his representative in certain matters to do with the Contractor's responsibilities in undertaking the Contract.

17. PRICING / RENT

1. The Second Party shall provide a revenue share of 22% of total sales against rent to the First Party.

2. The Second Party shall submit to First Party an approved statement of sales on monthly basis of the total sales at the end of each month along with the cheque for the revenue share amount as per point 1 above. The statement of sales and supporting documents shall be subject to review by the First Party.

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3. The Second Party shall collect the charges in advance, directly from the respective staff, student, faculty or individual consuming the food and beverage items.

4. The First Party shall not be responsible for any unpaid dues owed by any staff, student, faculty or individual, with regard to the Services provided by the Second Party.

5. For services ordered by the concerned department of First Party, the Second Party shall invoice the First Party and the payment shall be made by the First Party within 30 days of the non-disputed invoice's submission date.

Note: The menu pricing mentioned should always be maintained by the Vendor and cannot be changed. In case the Vendor needs to update the pricing due to unforeseen reasons or any reasons whatsoever, the Vendor is mandated to get a prior approval from KU for such actions. Any pricing or menu updates without the approval from KU will result in breach of contract terms and conditions and thereby, liquid Damages and performance bank guarantee application will be issued against the Vendor.* *(THIS NOTE NOT APPLICABLE FOR SECOND PARTY)***

18. PERFORMANCE BOND

The Second Party shall provide at his own cost, a Performance Bond in the form of an unconditional Bank Guarantee which is not liable to cancellation, issued by a UAE registered Bank in favour of Khalifa University, P.O.BOX: 127788, in the sum of AED 20,000.00 not later than 15 days from the date of this Contract.

The Performance Bond shall be valid from the Contract start date up to 3 months after the Contract expiry date, and to be renewed along with the Contract renewal for the specified period herein and same terms (i.e. 17 Months for first year, 15 Months for any subsequent year upon valid extension).

If the Second Party fails to perform his obligations under this Contract, the Bank Guarantee may be forfeited by the First Party without prejudice to the First Party's right to take whatever legal action the First Party deem necessary, as per the rules and regulations of contracts of Khalifa University and / that issued by Abu Dhabi Government. (***NOT APPLICABLE FOR SECOND PARTY)***

19. SCOPE OF WORK

1. Scope of Work Summary

The scope of this project is to provide SCIENTIFIC SUPPLIES by the Contractor to be located in Khalifa University Abu Dhabi campus. The University allocated a suitable Outlet in Main Campus - M

2. First Party Obligations

a. The First Party shall provide free of charge access to a 3 phase power outlet of sufficient current capacity as requested by the Second Party. The Second Party shall ensure power consumption within limits mutually established with the First Party.

b. The First Party shall provide free of charge access to portable water. The Second Party shall ensure water consumption within limits mutually established with the First Party.

3. Second Party Obligations

1. The Second Party is responsible for the provision of personnel such as staff, cleaning employee and maintenance of any specialized equipment required for its operations.

2. The second party is responsible for all types of approvals required by the UAE local & government bodies (Not limited to Civil defense, ADM etc.) for any alterations and modifications carried out in the allocated space

3. The Second Party is bound to provide properly uniformed, competent, and professional staff. No smoking should be maintained within the campus and the staff should abide strictly to the UAE Health and Safety Regulations.

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4. The Second Party's staff should maintain a very high degree of discipline, good behaviour, respect and honesty while on site and should work in full compliance with the KU El-IS Security & safety guidelines

5. The First Party reserves the right to ask for immediate replacement of any Second Party's staff if found to be unsuitable; incompetent, dishonest, of bad behaviour or troublemaker, etc. or any noncompliance with any contract terms and conditions at Second Party's own expenses.

6. The contractor's staff may be subject to inspection by the security guards while leaving the area of work or the Campus. (***NOT APPLICABLE FOR SECOND PARTY)***

7. All cleaning equipment should be maintained and checked periodically and record to be submitted to Facilities management department.

8. The Second Patty shall ensure that each individual of his staff shall not work more than 10 hours a day and shall not be assigned to work at any other site during their off-duty hours or on their weekly-off days.

9. The Second Party is obligated to pay the salaries and wages for his employees and providing health insurance for them and provide comprehensive health insurance certificates and disease free certificate from accredited authorities in the country.

10. The Second Party's is undertake the supervising task to his catering and subordinate, and adheres to appoint a person grants him full powers to coordinate with the First Party in order to execute the Contract matters, and must obtain the consent of the First Party to this appointment and in changing it. The First Party is entitled to request a change to any of the Second Party subordinate, however the Second Party must provide the alternative in (14) days maximum and shall bear all the expenses involved.

11. The Second Party is responsible for the fit-out of the designated space, and shall provide and install al) necessary facilities, equipment, and furniture required to execute the Service and as per approved samples by the first Party.

12. The Second Party is obligated to obtain the required Licenses from the Local Authorities and is responsible to abide by their rules and regulations in terms of licensing and service provision. This includes all relevant Authorities including but not limited to Abu Dhabi Municipality, Economic Departments Food Control (ADFCA), Civil Defense, etc. The Second Party shall also be responsible for any fees, fines, levies, etc. for the services payable to any local authorities.
13. The Second Party is obligated to provide cleaners on his cost to clean the Coffee Shop and surrounding area besides removing all Coffee Shop garbage on daily basis to the designated places outside the Campus according to regulations and procedures applicable in the country. (***NOT APPLICABLE FOR SECOND PARTY)***

14. The Second Party shall, at all times, maintain a high standard of cleanliness and adhere to all approved UAE government quality and handling, storage, transportation and upkeep of the catering premises and shall include but not be limited to the following: (***NOT APPLICABLE FOR SECOND PARTY)***

    a) Cleanliness of the eating areas and its surroundings.

    In this regard, the Second Party shall maintain a well-defined and appropriate standard hygiene, health, and safety programs. The Second Party shall be liable for, and shall indemnify the First Party against any damages arising upon non-compliance on cleanliness and hygiene.

15. The Second Party will notify the First Party of any changes to the retail prices which can only be applied upon the First Party subordinates approval. (***NOT APPLICABLE FOR SECOND PARTY)***

16. The Second Party should submit the design and branding of the space for approval for the Authorized section in the University and should be aligned with the University's branding guidelines.

17. The Second Party will provide service from 7 am to 8 pm Monday till Thursday, and modified services from 9 am to 12 pm on Fridays. (***NOT APPLICABLE FOR SECOND PARTY)***

18. The Second Party should be available on public holidays upon request from the University. All mutually approved and agreed food and beverage items shall be available during this period. (***NOT APPLICABLE FOR SECOND PARTY)***

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19. The Second Party will provide service throughout the year including Major University Breaks which are; 2 weeks winter break in December, 1 week of spring break and 6 weeks summer break in mid-summer. Any postponement of Service if required by Second Party shall be subject to First Party approval.

20. HEALTH & SAFETY

1. The Contractor should comply with all Environmental, Health and Safety, (EHS) legal requirements of the United Arab Emirates Government, the Centre of Waste Management - Abu Dhabi, (CWM-AD) and the EHS Management Systems of Khalifa University.

2. Khalifa University is extremely conscious of Health & Safety requirements in the work place, and requires the Contractor to be fully compliant with all relevant Health & Safety regulations. Contractor must deliver the highest possible standard of health & safety for all campus users such as staff, students, clients and visitors. The general health, safety and well-being of every person involved in the University activities is of paramount importance; this includes all campus users.

3. The Contractor shall ensure the training provided to the service providers.

4. The Contractor shall ensure the proper storage of products.

5. The Contractor shall particularly, be responsible for the following:

   a. Providing the required documented records, which reflect compliance to the present law, and the related bylaws, regulations and decisions.

6. The Contractor shall provide a skilled labor, with appropriate and approved uniform by the University.

7. Contractor must conduct its activities so that equipment, supplies, and work practices are safe for workers and can be understood by all workers and others present at the work location.

8. Contractor shall provide a safe work area free from recognized hazards, shall use due care to prevent damage to property materials and equipment, and shall comply with all applicable local, federal environmental, health, and safety (EHS) laws, regulations and standards. The contractor shall restore to original condition any damaged property, materials, and equipment.

9. All items furnished and all work performed by Contractor shall comply with the most current applicable requirements of the UAE Abu Dhabi Occupational Safety and Health System Framework (OSHAD SF)/(ADPHC), federal and local EHS regulations and standards in the jurisdiction where the work is being performed.

10. Any failure to comply with the applicable laws, regulations, and standards may be grounds for termination of the Purchase Order.

A. Catering Contract Service standard Cleaning practices must include as a minimum:

   1. Health and Safety Policy.

   2. Site and contract specific risk assessments and method statements.

   3. Induction and refresher training for all cleaning staff for all activities.

   4. Induction and refresher training for all cleaning staff on Campus.

   5. Regular health & safety audits.

   6. Provision of Personal Protective Equipment and Clothing for staff.

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7. Safe chemical purchasing policy.

8. Manual handling policy, assessment and training.

9. Hazardous substance assessment control procedures.

10. Material Safety Data Sheets must be kept on site for staff use and in the appropriate language of the user.

11. All plant and equipment used must be inspected on a regular basis by competent staff. This includes electrical safety. (Portable appliance testing and tagging)

12. First Aid kit provision for your staff.

13. Hazardous Waste and Waste management policy and procedures.

14. Working at height policy and safe system of work.

15. Pest Control Policy and approved pesticides by CWM – AD

16. Khalifa University requires you to, when requested, provide documentary evidence for all of the above. In addition Khalifa University will audit your Safety, Health and Environment Management System at least annually.

21. PENALTY FOR FAILURE TO PERFORM

1. In case the Contractor breaks the rules of Safety, Public Health, or the rules of the related Government authorities in preparing and serving the food and beverage items or Contractor's employees does not follow the general rules of the University or do some inappropriate action; the Contractor shall be notified in written letter with a cure period of 30 days for the first case and then he shall be penalized the sum of AED 3,000.00 (Three Thousand Dirhams) and if the same case repeated the Contractor shall be penalized the sum of AED 5,000.00 (Five Thousand Dirhams), besides being fully liable for any infected people who proves their claims with written official reports. The University keeps the right to terminate the Contract and liquidate the Bank Guarantee / Cheque, where there has been 5 such breaches in a rolling 3-month period. **(***NOT APPLICABLE FOR SECOND PARTY)*

2. The University shall not be obligated to answer any query for imposing liquidated damages.

3. The University may, without prejudice to any other method of recovery, deduct the amount of such damages from any monies which are due or may become due to the Contractor and/or may have recourse to the Bank Guarantee established by Contractor. The payment or deduction of such damages shall not relieve the Contractor from its obligation duly to perform all the other provisions of this Contract.

22. GENERAL REQUIREMENTS

A. Medical Insurance:

The Contractor's personnel should be covered with an insurance scheme in line with Abu Dhabi Labour Ministry regulations.

B. General Requirements:

1. Contractor should not engage any subcontractor to carry out the security management. If required, should provide a formal request to the University and get prior approval.

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2. Any reports should be dealt with strict confidence and should not be shared to any third party.

3. Contractor should be completely aware of Khalifa University EHS policies and emergency plans.

4. Contractor should appoint staff as the contractors' focal point with authority and responsibilities over the entire contract.

5. Contractor should provide complete staff profile for Facility Management Department (FMD) for review.

6. Contractor should notify FMD for deploying a new staff in replacement due to staff's leave, absence, or other reasons.

23. SUBCONTRACTORS

1. The Contractor agrees to provide a complete list of names and addresses of all the sub-contractors consultants and any other Contractors of services for the performance of the Contract.

2. The Contractor shall be fully responsible for all work and services performed and all material and equipment supplied by Sub Contractors and for the acts and omissions of Sub Contractors and persons either employed directly or indirectly.

24. TERMINATION OF CONTRACT

Khalifa University reserves the right to terminate the Contract or part of the Contract, by giving one (1) month notice if the Contractor's performance, response, behaviour was found unsatisfactory or for any other reason opted by the University administration.

25. SUSPENSION OF WORK

Khalifa University may at any time, require Contractor to suspend the performance of all and/or portion of Services relative to this Contract and Contractor shall react upon the University request.

26. CONFLICT OF INTERESTS

Each party shall exercise reasonable care and diligence to prevent any actions or conditions which could result in a conflict with the best interests of the other Party.

27. DISPUTES

In cases of disputes that cannot be resolved directly by the University and Contractor, such disputes will be referred for arbitration. If still not solved then Abu Dhabi courts may be approached for settlement.

28. NOTICES

1. Any notices to be given under the terms of this Contract shall be served by sending the same by post or by leaving the same at the Administration Office of the Party on whom such notice is to be served.

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29. VARIATIONS

1. Amendments to any term, condition, or provisions of this Contract can only be effected by executing a Variation Order duly approved by parties thereto. A Variation Order thus executed shall be deemed an integral part of this Contract.
2. The Contractor shall strictly comply with all terms and conditions of this Contract and shall not carry any amendments to this Contract until formally authorized by executing a Variation Order duly approved by Parties thereto.

30. FORCE MAJEURE

1. Failure or omission on the part of either Party to observe any of the terms and conditions hereinbefore stipulated shall not give rise to any claim or be deemed a breach of this Contract if such failure or omission arises from any cause reasonably beyond the control of either Party such as fire, war, and natural disasters.
2. Party claiming force majeure shall notify the other Party of such event within fifteen (15) days by email stating the estimated consequences. Onus to prove the occurrence of such events lies on the Party claiming its invocation. If the force majeure lasts more than three (3) months, the University may terminate the Contract without affecting its rights adversely under this Contract.
3. Any extension in the delivery period due to clauses of force majeure shall be by mutual agreement between Parties.

31. ASSIGNMENT

The Contractor shall not assign this Contract or any part thereof of any benefit or interest herein or there under (other than by a charge in favour of the Contractor's Bankers of any monies due or to become due under this Contract) without the prior written consent of the University.

32. INSURANCE / PUBLIC LIABILITY

1. The Contractor shall obtain and maintain the following insurance covers at all times during the period of this Contract, at the cost of the Contractor:
   a. Workmen's compensation, Employers liability or similar insurance in such amounts as may be sufficient to fulfil liabilities under all applicable laws.
   b. Public / third party liability such insurance shall be in the amount of not less than 1,000,000.00 AED for any one occurrence or series of occurrences arising with unlimited number of occurrences.

A copy of this insurance should be provided to Khalifa University. (***NOT APPLICABLE FOR SECOND PARTY)***

33. INDEMNITIES

1. Contractor shall notify Khalifa University of any accident occurrence likely to give rise to a claim under Khalifa University's insurances as soon as possible in any event within two (2) working days of such occurrence. Contractor shall also submit all the claim documents to the Khalifa University as soon as possible and in any event within fifteen (15) days of such occurrence. Whenever applicable, actual settlement of a claim shall be effected by the Insurers directly to Khalifa University's account. Once the claim amount is settled by the Insurers, Khalifa University shall reimburse the Contractor the claim amount due to Contractor as the case may be.

2. In no event shall either party have any liability to the other party or its affiliates or sub-contractors for any special, indirect, exemplary, punitive or consequential loss or damage including damages or claims in the nature of lost revenue, income, profits or investment opportunities.

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3. The Contractor shall release, defend, indemnify and hold harmless Khalifa University, its affiliates and its officers, employees, sub-contractors and agents from and against all claims, liabilities, damages, and expenses including, without limitation, attorney's fees and other costs of defense arising out of or incidental to this Contract for:

   a. Any and all injuries to or death or illnesses of any Contractor employees, officers, agents, sub-contractors excluding any claims made by personnel under any workers and/or personnel insurance program maintained by such Contractor, or any third parties and;

   b. Any and all damage to or loss of property of the Contractor, Contractor's employees, officers, agents, sub-contractors or any third party, except where occasioned by, or as the result of, in whole or in part, the gross negligence or wilful misconduct of a Khalifa University indemnities.

4. Without limitation to its obligations and responsibilities under this Contract, the Contractor during the whole period of the Contract from commencement until the expiry date shall at its own expense either insure or cause to be insured for liability for bodily injury by accident or disease including death resulting therefrom sustained by any agent, servant or employee of Contractor or sub-contractors arising out of and in the course of employment; and for all plant and equipment brought onto the Services site by the Contractor or sub-contractors for the use in connection with the Services to their full value against all loss or damage from whatever cause.

34. GENERAL CONDITIONS

1. The Contractor undertakes that any of their workers, users and their staff shall not steal and / or view and / or tamper with any information and / or documents, whether oral, paper and / or electronic, as well as not to leak or use elsewhere any information, whether confidential or non-confidential to any other party shall be entitled, during the course of this Agreement or after cancellation of this Agreement without notice or warning and without obligation to any compensation or obligations. In the event of violation of this clause, Contractor shall be responsible for any loss or damage to the Khalifa University as a result.

2. The Contractor is solely and fully responsible for what results from work injuries, death or damage of any kind for any of its employees or workers, whether arising from negligence or personal negligence of its agents or employees or its users while working as a responsible public responsibility for their actions towards all staff and workers.

3. The Contractor shall ensure that the all his staff assigned for the provision of services shall have valid labour permits issued by the Ministry of Labour in the UAE and shall be under the sponsorship of the Contractor.

35. PUBLICITY

The Contractor shall not publish or make public any reference to or in connection with the Services without the prior written permission of Khalifa University.

36. APPLICABLE LAWS

1. This Contract is governed by the laws applicable in the Emirate of Abu Dhabi and the United Arab Emirates.

2. The headings in this Contract are meant for easy reference only and shall not form part hereof nor shall they have any effect on its interpretation.

3. The Contractor has to obtain all the licenses and permits required under the laws applicable to this Contract.

4. Any contradiction between the provisions hereof and any other documents, previsions hereof shall prevail. In case of any contradiction between the provisions hereof the subsequent provision shall supersede the previous one.

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5. Any dispute, case or controversy arising from or in connection with this Contract or any breach hereof shall be referred to the parties for amicable settlement. If the amicable settlement is not possible, the dispute shall be referred to the court of jurisdiction for settlement.

37. APPENDICES

Appendix A: Menu / Price List **NOT APPLICABLE FOR SECOND PARTY**

Appendix B: Outlet Floor Plan

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Appendix A

(Attach Menu and Price list if any)

*Note: The menu pricing mentioned should always be maintained by the Vendor and cannot be changed. In case the Vendor needs to update the pricing due to unforeseen reasons or any reasons whatsoever, the Vendor is mandated to get a prior approval from KU for such actions. Any pricing or menu updates without the approval from KU will result in breach of contract terms and conditions and thereby, liquid Damages and performance bank guarantee application will be issued against the Vendor.

NOT APPLICABLE FOR SECOND PARTY

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